

Decision Tree Cheat Sheet

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You got a rating decision. Now what?

Step 1: Do you agree with it?

- **Yes** → Done. Cash the retro check.
- **No** → Continue.

Step 2: How long ago was the decision?

Less than 1 year ago → Continue. **More than 1 year ago** → Skip to Step 6.

Step 3: Do you have NEW evidence VA didn't have?

Yes → File a **Supplemental Claim (Form 20-0995)**.

- Effective date preserved
- VA owes you duty to assist
- Submit your new evidence with the form

No → Continue to Step 4.

Step 4: Did VA misapply the law or misweigh the existing evidence?

Yes → File a **Higher-Level Review (Form 20-0996)**.

- No new evidence allowed
- Effective date preserved
- ALWAYS request the informal phone conference

No → Continue to Step 5.

Step 5: Without new evidence and without a legal/factual error, neither HLR nor Supplemental will succeed.

Recommended action: Stop and gather evidence. Consider:

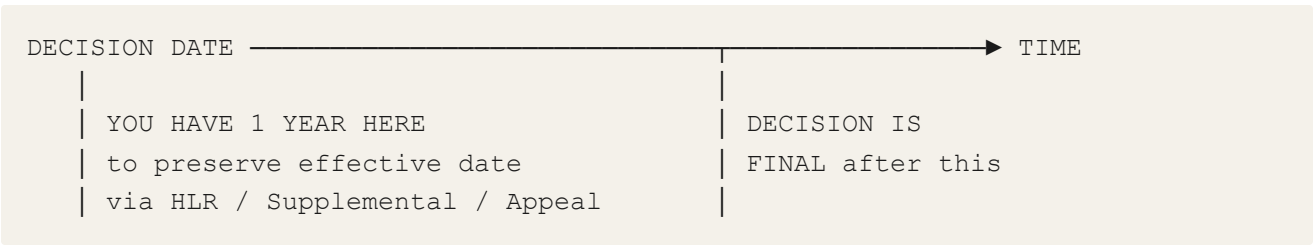
- New C&P-style exam from a private provider (DBQ)
- Buddy letters
- Treatment records VA hasn't pulled
- Then file Supplemental within the 1-year window

Step 6: More than 1 year has passed since the decision

The decision is "final." Two paths remain:

- **Clear and Unmistakable Error (CUE)** — extremely high bar; consult an accredited rep
- **New claim** — file fresh with new evidence (effective date will be the new claim date, not the original)

The 1-year rule, visually



CRITICAL: Set a calendar reminder for day 350 of every decision. File something — even an ITF for a Supplemental — before the year is up.

Choosing between HLR and Supplemental — at a glance

	HLR (20-0996)	Supplemental (20-0995)
New evidence allowed?	✗ No	✓ Yes
Effective date preserved?	✓ If within 1 yr	✓ If within 1 yr
VA's duty to assist?	✗ No	✓ Yes
Phone conference option?	✓ Recommended	✗ No

	HLR (20-0996)	Supplemental (20-0995)
Typical decision time	4–7 months	4–6 months
When to use	Misapplied law / overlooked record	New medical, lay, or buddy evidence

Effective date quick reference

You have...	Effective date will be...
ITF + formal claim within 1 year	ITF date
Increase claim + symptoms worsened within 1 year prior	Facts-found date (if proven)
Original claim only, no ITF	Date claim received
Supplemental within 1 year of decision	Original claim date preserved
HLR within 1 year of decision	Original claim date preserved
Anything filed more than 1 year out	Date of new filing (loses retro)

What to file by 1-year deadline if you're not ready

If you're approaching the 1-year mark and don't have everything together:

File an Intent to File (Form 21-0966) — gives you another year to perfect the claim while preserving the effective date.

Three rules that override most situations

1. **Always request the HLR informal conference.** Free, fast, dramatically improves outcomes.
2. **Never throw away VSO confirmation letters or ITF receipts.** Worth tens of thousands later.

3. File a Supplemental BEFORE the 1-year deadline if you have anything new. "I might have evidence" beats "decision became final."

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